
Journal

1992 PCrLJ 998

Court

FEDERAL SHARIAT COURT

Date

1989-01-29

Appeal No.

CRIMINAL APPEALS NOS,187/1, 221/1, OF 1989, 4/1 AND 18/1 OF 1990

Judge

TANZIL-UR-RAHMAN, CJ.,FIDA MUHAMMAD KHAN AND MIR HAZAR KHAN KHOSO

Parties

LIAQAT ALI AND 3 OTHERS (APPELLANTS) VERSUS THE STATE (RESPONDENT)

Lawyers

MIAN ISHTIAQ HUSSAIN FOR APPELLANT (IN CRIMINAL APPEAL NO.187/1 OF1989).MUNIR ELAHI QURESHI FOR APPELLANTS (IN CRIMINAL APPEALS NOS.221/IOF 1989 AND 4/1 OF 1990).

Statutes

PROHIBITION (ENFORCEMENT OF HADD) ORDER (4 OF 1979) - ARTICLES 3 AND 4
CRIMINAL PROCEDURE CODE (V OF 1898) - SS. 537, 528 AND 347 CRIMINAL
PROCEDURE CODE (V OF 1898) - S.350

Judgment

MIR HAZAR KHAN KHOSO, J.- For having been found in possession of heroin exceeding ten grams, appellants Liaqat Ali (Criminal Appeal No.187/1 of 1989), Khushi Muhammad (Criminal Appeal No.221/I of 1989), Amir Khan (Criminal Appeal Appeal No.4/I of 1990) and Hakim Ali (Criminal Appeal No.18/1 of 1990) were challaned before the Court of Senior Civil Judge/Judicial/Section 30 Magistrate, Islamabad to face trial for offence under Article 3/4 of Prohibition (Enforcement of Hadd) Order, 1979 (hereinafter referred to as the Order).

Criminal Appeal No.187/1 of 1989.

2. On 26-3-1988 the learned Judicial/Section 30 Magistrate, Islamabad framed charge under Article 4 of the Order against appellant Liaqat Ali, who did not plead guilty to it. The prosecution examined five witnesses.

The appellant was examined under section 342, Cr.P.C. and then the case came for trial before the Court of the learned Additional Sessions Judge, Islamabad, where the appellant examined himself on oath under section 340(2), Cr.P.C. but produced no witness in defence. On 2-10- 1989 he was convicted for the offence under Article 4 of the Order and awarded various sentences by the learned Judge. His appeal was admitted by this Court on 27-11-1989, where certain questions of law were raised and the same came for hearing on

20-12-1989 before a Division Bench of this Court (Then Judges Mr. Justice Abdul Karim Khan Kundi and Mr. Justice Abdul Razzaq A.

Thahim). It would be relevant to reproduce the diary of the abovesaid date:-

Further arguments heard, but the point does not seem being resolved. Learned counsel for the parties request for adjournment to further prepare the case. There shall be issued notice to the learned Assistant Advocate-General to please make himself available on the next date of hearing for the assistance of the Court with relevant study of sections 5, 29, 30, 34, 190, 193, 347 and 529 to 535. He shall be apprised of the facts of the case that a Magistrate 1st Class with enhanced powers under section 30, Cr.P.C. had taken cognizance of the case punishable with imprisonment of life within the territory comprised of Federal Capital when apparently it seems to be a case exclusively triable by a Court of Session. The Magistrate had recorded evidence in the case and has afterwards sent it to the Court of Session who only recorded judgment of conviction on the basis of evidence recorded by the Magistrate. The law point involved in it is whether the case has been sent by the Magistrate to the Court of Session under section 347, Cr.P.C. and that the Court of Session could record conviction on the strength of the evidence recorded by the Court of Magistrate or that it is a case to be sent to the Court of Session under section 190(3), Cr.P.C. and the transmission of the case after recording of evidence shall be deemed as having been sent under section 190(3), Cr.P.C. and that the Court of Session was to start with the case ab initio. The case is adjourned, to be fixed after winter vacations. Since the adjournments have occasioned due to the involvement of complicated questions of law at the instance of the Court and further the circumstances of the case otherwise justify the suspension of sentence, we make order accordingly. Convict shall be released on bail pending appeal on furnishing bonds in the sum of rupees twenty thousand with two sureties to the satisfaction of the trial Court."

Criminal Appeal No.221 /I of 1989

3. A charge under Article 3/4 of the Order was framed against appellant Khushi Muhammad on 14-11-1987 by the learned Judicial Magistrate/Section

30 Magistrate, Islamabad, where to he did not plead guilty. The prosecution examined six witnesses in support of its case. His statement under section 342, Cr.P.C. was recorded. He neither examined himself on oath under section 340(2), Cr.P.C. nor produced any defence witness.

However, the case came for trial before the learned Additional Sessions Judge, Islamabad, who on

5-10-1989 convicted the appellant for the offence under Article 4 of the Order and awarded him various sentences. His appeal was admitted in this Court on

24-12-1989 where similar questions of law involved in Criminal Appeal No.187/1 of 1989 came under discussion, hence on 21-3-1990 a Division Bench of this Court (then Judges Mr. Justice Abdul Karim Khan Kundi and one of us Mr. Justice Dr. Fida Muhammad Khan) ordered for hearing of this appeal alongwith Criminal Appeal No.187/1 of 1989.

Criminal Appeal No.4/I of 1990

4. On 28-1-1989 the learned Judicial/Section 30 Magistrate, Islamabad framed charge under Article 4 of the Order against appellant Amir Khan where to he did not plead guilty. In support of the case the prosecution examined five witnesses and then the case came for trial before the learned Additional Sessions Judge, Islamabad, where one more witness was examined. His statement under sections 342 and 340(2), Cr.P.C.

was also recorded. The learned Additional Sessions Judge convicted the appellant for offence under Article 4 of the Order on 1-1-1990. The appeal was admitted before this Court on 25-2-1990. On 26-6-1990 a Division Bench of this Court (then Judge Mr. Justice Abdul Karim Khan Kundi and Mr. Justice Abdul Razzaq A. Thahim) passed the same order as in case of appellant Liaqat Ali in Criminal Appeal No.187/1 of 1989.

Criminal Appeal No.18/1 of 1990

5. On 27-1-1988 the learned Judicial/Section 30 Magistrate, Islamabad framed charge under Article 4 of the Order against appellant Hakim Ali where to he did not plead guilty and claimed trial. The prosecution examined five witnesses in support of the case. The case then came for trial before the learned Additional Sessions Judge, Islamabad, where two witnesses were examined and statement of the appellant under sections 342 and 340(2), Cr.P.C. was also recorded. However, the appellant was convicted for the offence. On 25-2-1990 this appeal was admitted. On 26-6-1990 a Division Bench consisting of then Judges Mr. Justice Abdul Karim Khan Kundi and Mr. Justice Abdul Razzaq A.

Thahim passed same order as in Criminal Appeal No.187/1 of 1989. On office note the Honourable Chief Justice on 25-3-1991 constituted a Full Bench of this Court consisting of then Judges Mr. Justice Ibadat Yar Khan and one of us Mr. Justice Dr. Fida Muhammad Khan and Mr.

Justice Abdul Razzaq A. Thahim, to dispose of the reference accordingly. It would be beneficial to reproduce the office note, which reads as under:-

."Criminal Appeal No.187/1 of 1989 (Liaqat Ali v. The State)

came up for hearing before a Division Bench consisting of

Honourable Mr. Justice Abdul Karim Khan Kundi and Honourable Mr. Justice Abdul Razzaq A. Thahim on 18-12-1989, 20-12-1989, 11-3-1990, 21-3-1990 and 6-1-1991. The Court was pleased to order to issue notice to the learned Assistant Advocate-General for the assistance of the Court with relevant study of sections 5, 29, 30, 34, 190, 193, 339 and 529 to 539, Cr.P.C. The facts of the case are that a. Magistrate 1st Class with enhanced powers under section 30, Cr.P.C had taken cognizance of the case punishable with imprisonment of life within territory comprised of Federal Capital when apparently it seems to be a case exclusively triable by a Court of Sessions, Islamabad. The Magistrate had recorded evidence in this case and afterwards sent it to the Court of Sessions who only recorded judgment of conviction on the basis of evidence recorded by the Magistrate. The law point involved in it is whether the case has been sent up by the Magistrate to the Court of Sessions under section 347, Cr.P.C. and that Court of Sessions could record conviction on the strength of the evidence recorded by the Court of Magistrate or it is a case to be sent to the Court of Sessions under section 190(3), Cr.P.C. and the transmission of the case after recording of evidence shall be deemed as having been sent under section 190(3), Cr.P.C. and the Court of Sessions was to start with the case ab initio.

Order of the Court is at flag 'A'.

Similar law point arose in Khushi Muhammad v. State Criminal Appeal No.221/1 of 1989, Hakim Ali v. State Criminal Appeal No. 18/1 of 1989 and Amir Khan v. State Criminal Appeal No.4/I of 1991, which have been partly heard together alongwith Criminal Appeal No.187/1 of 1989 by the same Bench.

Another Jail Criminal Appeal No.2/I of 1991 (Pir Muhammad v. The State) came up for regular hearing before a Division Bench consisting of Honourable Mr. Justice Dr. Fida Muhammad Khan and Honourable Mr. Justice Abdul Razzaq A. Thahim on 13-3-1991 wherein the conviction of the appellant was recorded by the Additional Sessions Judge, Haripur, on the evidence recorded by the Magistrate Section 3Q.

The Division Bench has observed that as an identical point is being considered in Criminal Appeal No.187/1 of 1989 be referred to a Larger Bench and record be placed before the Honourable Chief Justice for further orders. Order of the Court is at flag 'B'

In view of the above, it is requested that a Larger Bench of this Court may be constituted to hear Criminal Appeal No.187/1 of 1989, Criminal Appeal No.221/I of 1989, Criminal Appeal No.18/1 of 1990, Criminal Appeal No.4/I of 1991 and Jail Criminal Appeal No.2/I of 1991."

Liaqat Ali v. The State Criminal Appeal No.187/1 of 1989 came up for hearing before a Single Judge of this Court one of us (Mr. Justice Dr. Fida Muhammad Khan) on 7-1-1992, who passed the order in the words as under:-

"The appellant is present on bail but the appellant's counsel not. present in spite of service.

(2) The question of trial by a Magistrate with powers under section 30, Cr.P.C. for an. offence punishable with life imprisonment under the provisions of the Prohibition (Enforcement of Hadd) Order, 1979 has been settled in a Full Bench judgment of this Court which has been reported in P L D 1991 FSC 66. However, the point at issue in this and several other appeals is somewhat different in nature as it pertains to the jurisdiction of a Magistrate Islamabad in Federal Territory. The point needs consideration by a Larger Bench. The Office shall place the same before the

Honourable Chief Justice for consideration and orders in this respect and if approved, notices shall also be issued to A.-G.

Punjab and District Attorney, Islamabad.

(3) Adjourned to a date in office. To come up for hearing alongwith Khushi Muhammad v. The State Criminal Appeal No.221/I of 1989, Amir Khan v. The State Criminal Appeal No.4/I of 1990 and Hakim Ali v. The State Criminal Appeal No.18/1 of 1990."

7. On desire of one of us (Mr. Justice Dr. Fida Muhammad Khan) the above-said appeals were ordered to be heard by a Full Court, hence the same came for hearing before this Bench on 29-1-1992.

8. In Criminal Appeal No.187/1 of 1989 Mian Ishtiaq Hussain, Advocate appeared for appellant Liaqat Ali, in Criminal Appeal No.221/I of 1989 and Criminal Appeal No.4/I of 1990 Mr. Munir Elahi Qureshi, Advocate appeared for appellants Khushi Muhammad and Amir Khan and in Criminal Appeal No.18/1 of 1990 Mr. Sardar Muhammad Ghazi, Advocate, appeared for appellant Hakim Ali. Mr. Muhammad Aslam Uns, Advocate alongwith Mr. Zulfiqar Ahmad Piracha, District Attorney, appeared for the State.

9. The points raised before us by the learned counsel for the appellants were:-

(i) That under Law Reforms Ordinance, 1972 (XII of 1972), section 30,

. Cr.P.C. stands omitted from the Code of Criminal Procedure. Hence the Administrator, Islamabad Capital territory, had no jurisdiction to issue Notification No.I/19/L&0/82 conferring section 30, Cr.P.C. powers on Senior Civil Judge, Islamabad Capital Territory.

(ii) Under section 30, Cr.P.C. powers could be conferred upon a Magistrate of First Class but not on a Senior Civil Judge.

(iii) There is nothing on the record to suggest that whether the cases of the appellants were sent to the Court of Additional Sessions Judge under section 347 or 193, Cr.P.C. hence conviction of the appellants by the Additional Sessions Judge on the evidence already recorded before the Magistrate is illegal.

10. The learned counsel for the State vehemently controverted the contentions of the learned counsel for the appellants and supported the judgments passed by the learned Additional Sessions Judge, Islamabad.

11. It may be pertinent to observe that Law Reforms Ordinance, 1972 was promulgated by the Federal Government on 13-4-1972 whereby operation of the provisions relating to the amendments in Code of Criminal Procedure was left to the discretion of the Provincial Governments but not later than the first day of January, 1973. However, subsequently the words 'not later than first day of January, 1973' were omitted by Act XIX of 1972. Thus, it was left at the will of the Provincial Governments to enforce the amendments in the Code of Criminal Procedure on any date of their choice. Most of the amendments in Criminal Procedure Code were brought into force from 26-12-1975 by the Provincial Governments and thereafter. However, item 13 Law Reforms Ordinance 1972 regarding omission of section 30 from the Code of Criminal Procedure has not been notified by the Provincial Governments till today. The objection in respect of the same raised by the learned counsel for the appellants, therefore, is of no consequence.

12. Turning to conferring of powers under section 30, Cr.P.C. on Senior Civil Judge, Islamabad, it may be observed that such objection should have been raised before the learned Magistrate who would have been in better position to dispose it of. Smoothly the cases proceeded before the learned Magistrate and the learned Additional Sessions Judge, Islamabad, who has finally disposed them of vide impugned judgments.

However, it may be pertinent to observe that earlier in the year 1953 the Government of the Punjab vide Notification No.9262-52/74, dated 3rd January, 1953 conferred First Class and Section 30 powers on Senior Civil Judges and Administrative Judges respectively in the Province of Punjab.

Again by another Notification No. 16/4-HJudl/56/13664, dated 29th May, 1957 the Government of West Pakistan conferred First Class and Section 30 powers on Senior Civil Judges and Civil Judges. For the sake of perusal the Notification is reproduced below:--

"NOTIFICATION FOR THE WEST PAKISTAN GOVERNMENT GAZETTE PART I

Government of the West Pakistan,.

Home Department (Judicial),

Dated Lahore, the 29th May, 1957.

NOTIFICATION

No.16/4-HJudl./56/13664.- In exercise of the powers conferred by subsection (1) of section 12 of the Code of Criminal Procedure, 1898, the Governor of West Pakistan is pleased to confer the powers of Magistrate of the 1st Class upon every (1) Senior Civil Judge and (2) Civil judge of the 1st Class in West Pakistan, within the limits of the Districts in which they are posted from time to time.

No.16/4-H-Judl./56.- The Governor of West Pakistan is pleased to invest every Senior Civil Judge in West Pakistan, who is a Magistrate of the 1st Class, with powers under section 30 of the Code of Criminal Procedure, 1898, to try as a Magistrate all offences not punishable with death.

These powers shall be exercised within the limits of the Districts in which they are posted from time to time.

(Sd.)

(Wali Muhammad Khan) Deputy Secretary to Government of West Pakistan, Home Department."

Again by Notification No.8(20)S.O.(B&C), dated 25th October, 1971, the Government of the Punjab conferred 1st Class Magistrate powers and section 30, Cr.P.C. powers on Civil Judges 1st Class and Senior Civil Judges respectively. On the basis of above-said Notification the High Court of Punjab by Letter No.8229-JOB(I)/VI.0.8, dated 18th July, 1979 approached the Government of Punjab to confer section 30, Cr.P.C. powers on Civil Judges 1st Class including Mr. Karamat Hussain Niazi. For the sake of convenience, the letter is reproduced below:-

"LAHORE HIGH COURT. LAHORE

No.8229-J OB(I)/VI.O.8

From

Malik Lehrasap Khan,

Registrar, Lahore High Court,

Lahore.

To

The Secretary to the Government of the Punjab,

Home Department,

Lahore.

Dated Lahore the 18th of July, 1979.

Subject: Conferment of powers under section 30. Cr.P.C. upon First Class Civil Judges.

Sir,

I am directed to say that as a consequence of the separation of the Judiciary from the Executive, services of 41 Section 30, Magistrates have been placed under the control of this Court. This number, you will appreciate, is quite inadequate to cope with the heavy pending file of 18,330 Section 30 cases throughout the Province of the Punjab, at the end of April, 1979. By virtue of their post vide Punjab Government Notification No.8(20)SO(B&C)/70, dated 25-10-1971, all Senior Civil Judges are deemed to be Section 30 Magistrates. Accordingly sufficient number of section 30 cases have been entrusted to them for disposal. It has, however, been observed that the pending file requires still more Section 30 Magistrates to cope with the work.

(2) Similarly, under the above-said Government Notification dated

25-10-1971, all First Class Civil Judges are deemed to be First Class Magistrates by virtue of their post. The matter has been considered by their Lordships the Chief Justice and Judges who have been pleased to resolve that all First Class Civil Judges who have put in five years service be conferred powers under section 30, Cr.P.C.

(3) The following First Class Civil Judges have more than five years service to their credit:-

S. No. Name of Officer Station of Posting Date of entry into service-

.....

66. Karamat Hussain Alipur 3-12-1973

Niazi

.....

(4) I am, therefore, to request you to please confer powers under section 30, Cr.P.C. on all First

Class Judges mentioned in the preceding paragraph, with immediate effect, under intimation to this Court.

Your obedient servant, REGISTRAR."

The Government of the Punjab vide Notification No.8(20)SO(B&C)/70, dated 9th September, 1979 conferred Section 30, Cr.P.C. powers on Civil Judges First Class alongwith Mr. Karamat Hussain Niazi. The Notification reads as under:-

"GOVERNMENT OF THE PUNJAB HOME DEPARTMENT Dated Lahore, the 9th September, 1979 NOTIFICATION

No.8(20)SO(B&C)/70.- In exercise of the powers conferred on him by Section 30 of the Code of Criminal Procedure, 1898, the Governor of the Punjab, is pleased to invest the undermentioned First Class Civil Judges with the powers to try as Magistrate all offences not punishable with death within the limits of the districts shown against each. They will not, however, take cognizance of the cases under section 190, Cr.P.C. and will try only such cases as are transferred to them by the competent authority. The Notification No.8(64)SO(B&C)/70, dated the 11th February, 1972, will not be applicable to them:--

Sr. No. Name of Officer fition of posting with District.

1.

66. Karamat Hussain Alipur (Muzaffargarh).

Niazi

67.

(Sd.)

S.K. Mahmud

SECRETARY TO GOVERNMENT OF PUNJAB, HOME DEPARTMENT.

Endst. No.SO(B&C)8(20)/70 Dated Lahore, the 9th September, 1979."

On 8th April, 1985 Mr. Karamat Hussain Niazi, Civil Judge First Class was posted as Civil Judge First Class, Islamabad. The notification reads as under:--

"THE LAHORE HIGH COURT, LAHORE. NOTIFICATION

Dated Lahore the 8th April, 1985.

No. 353/RHC/CJJ.- The Chief Justice and Judges are pleased to make the following postings and transfers in the public interest with immediate effect:--

S.No. Name From to Remarks

.....

12. Mr. Karamat Hussain Chiniot Islamabad Vice Niazi, Civil Judge No. 11

1st Class BY ORDER OF THE CHIEF JUSTICE AND JUDGES (Sd.)

(KHALID PAUL KHAWAJA) Registrar.

In the meantime Mr. Karamat Hussain Niazi was promoted as Senior Civil Judge and posted as such in Islamabad. The Notification is reproduced below.--

"THE LAHORE HIGH COURT, LAHORE. NOTIFICATION

Dated Lahore, the 13th July, 1985.

No. 627/RHC/SCJJ.- The Chief Justice and Judges are pleased to make the following postings and transfers in the public interest with immediate effect:--

S.No. Name From To Remarks

.....

13. Mr. Karamat Islamabad Islamabad On promotion as Senior Hussain Niazi, Civil Judge vice Mr.

Civil Judge 1st Class Muhammad Mansoor Ali

Khan.

.....

BY ORDER OF THE ACTING CHIEF JUSTICE

AND JUDGES (Sd.)

(KHALID PAUL KHAWAJA) REGISTRAR.

13. Earlier on 27th May, 1982 the Administrator Capital Territory vide Notification No.I/19/L & 0/82 empowered the Senior Civil Judge, Islamabad Capital Territory, to try cases under section 30, Cr.P.C.

14. In such situation we are inclined to hold that objection regarding conferring of powers under section 30, Cr.P.C. on Senior Civil Judge, Islamabad raised by the learned counsel for the appellants has no force which is repelled accordingly.

15. The judgments of the learned Additional Sessions Judge in appeals of Liaqat Ali (Criminal Appeal No.187/1 of 1989) Khushi Muhammad (Criminal Appeal No.221/1 of 1989), Amir Khan (Criminal Appeal No.4/I of 1990) and Hakim Ali (Criminal Appeal No.18/1 of 1990) show that their cases from the Court of Section 30 Magistrate to the Court of the learned Additional Sessions Judge were transferred by the learned Sessions Judge, Islamabad. However, the order of the learned Sessions Judge is neither available on the record nor has been produced by any party before us. However, we feel that the learned Sessions Judge might had transferred the case on decision of case of Jamal v.

The State P L D 1989 Kar. 231 and unreported cases of the Federal Shariat Court in Nawabzada Khan v. The State Criminal Appeal No.234/L of 1989 wherein the Federal Shariat Court had taken a view that narcotics offences where imprisonment for life is provided are triable by the Court of Sessions Judge but not by a Magistrate with powers under section 30, Cr.P.C.

16. It may be pertinent to note that a Full Bench of this Court in case of Saeed Shah v. The State P L D 1991 FSC 66 did not approve the above observations and has held that Section 30 Magistrate had the jurisdiction to try all offences except punishable with death and Article 8 of the Order but could not impose sentence beyond seven years. The relevant para, of the judgment is reproduced hereunder:-

"The upshot of the above discussion is that the trial by a Magistrate with powers under section 30, Cr.P.C. for an offence punishable with life imprisonment under the provisions of the said Order, except Article 8, should be within his jurisdiction but will not be competent to award sentence of imprisonment for more than seven years. In the instant case the accused was tried for an offence under Article 3 of the Prohibition Order and was sentenced to five years' R.I. In the circumstances, it cannot at all be said that the trial or sentence passed was without jurisdiction. The reference is answered accordingly.

17. Undisputedly the cases have been sent by the learned Sessions Judge from the Court of Section 30 Magistrate to the Court of Additional Sessions Judge. It might be either under section 528, Cr.P.C. or 347, Cr.P.C. If not under the above-said two sections then by Administrative Order of the Sessions Judge based on the above-said three judgments. However, the cases have been decided by competent Court. Mere technical defect in sending the cases to it would not vitiate the judgments. Such defects even otherwise are curable under section 537, Cr.P.C.

The objection of the learned counsel for the appellants in respect of the same as such has no substance.

18. It may be further observed that under section 350, Cr.P.C. a Court is competent to act on evidence already recorded by its predecessor and record conviction and sentences based thereon. The Appellate Court, however, is competent to set aside such conviction and sentences but only when the accused shows that he has been materially affected thereby and not otherwise. For the sake of convenience section 350, Cr.P.C. is reproduced hereunder.-

"350. Conviction on evidence partly recorded by one Presiding Officer and partly by another; (1) Whenever any Sessions Judge or Magistrate, after having heard and recorded the whole or any part of the evidence in any inquiry or a trial, ceases to exercise jurisdiction therein, and is succeeded by another Sessions Judge or Magistrate who has and who exercises such jurisdiction the Sessions Judge or Magistrate so succeeding may act on the evidence so recorded by his predecessor or partly recorded by his predecessor and partly recorded by himself, or he may re-examine the witnesses and recommence the inquiry or trial:

Provided that-

(a) where the conviction was held before a Sessions Judge, the High Court; and

(b) where the conviction was held before a Magistrate, the High Court or the Court of Session,

may, whether there be an appeal or not, set aside any conviction passed on evidence not wholly recorded by the Sessions Judge or Magistrate before whom the conviction was held, if such Court is of the opinion that the accused has been materially prejudiced thereby and may order a

new inquiry or trial.

(2) Nothing in this section applies to cases in which proceedings have been stayed under section 364 or in which proceedings have been submitted to a superior under section 349.

(3) When a case is transferred under the provisions of this Code from one Magistrate to another, the former shall be deemed to cease to exercise jurisdiction therein, and to be succeeded by the latter within the meaning of subsection

19. No material was placed before us to suggest that any prejudice was caused to the appellants by reliance on the evidence already recorded.

Even otherwise the four appellants had agreed to rely on the evidence already recorded by the Magistrate. Indeed, they were aware of the fact that the evidence recorded before Section 30 Magistrate would be taken against them. Thus, no prejudice is caused to them. Besides, under section 537, Cr.P.C. irregularity of such nature is not sufficient to reverse a judgment. The objection in respect of the same, however, has to be raised at an early stage in the proceedings and an aggrieved person has to show that such procedure had occasioned a failure of justice.

20. The above-said discussions lead us to the conclusions:-

(i) That notification for omitting section 30, Cr.P.C. under Law Reforms Ordinance, 1972 has not been issued by the Provincial Governments yet and section 30 remains intact.

(ii) Powers under section 30, Cr.P.C. have been rightly conferred on Senior Civil Judge, Islamabad.

(iii) No illegality has been committed by the learned Sessions Judge in transferring the four cases of the appellants from the Court of Section 30 Magistrate to Additional Sessions Judge, Islamabad.

(iv) The learned Additional Sessions Judge, Islamabad had committed no illegality in convicting the appellants on evidence already recorded by Section 30 Magistrate.

21. The reference is answered accordingly. However, the above-said four appeals be fixed for hearing before a Single Bench for deciding the appeals on merits.

M.BA./667/FSC Order accordingly.

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